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Case Number: 25NWCV01150 Hearing Date: August 14, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

SDG SANTA FE SPRINGS, LLC,

Plaintiff,

vs.

DAVID BIRD, INC.

dba BIRDBGROUP CONSTRUCTION,

Defendant.

Case No.:

25NWCV01150

Hearing Date:

August 14, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF SDG

SANTA FE SPRINGS, LLC'S MOTIONS TO COMPEL DEFENDANT DAVID BIRD, INC. DBA BIRDBROUP CONSTRUCTION TO PRODUCE RESPONSES TO (1) REQUESTS FOR ADMISSION, SET ONE; (2) REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE; (3) SPECIAL INTERROGATORIES, SET ONE

AND RELATED CROSS-ACTION

Background

On April 2, 2025, Plaintiff SDG Santa Fe Springs, LLC ("SDG") filed this action against Defendant David Bird, Inc. dba Birdgroup Construction ("Birdgroup"), alleging four causes of action. On July 16, 2026, SDG filed the operative first amended complaint against Birdgroup and Justin Albright Bird, alleging seven causes of action for (1) breach of contract; (2) breach of the implied covenant of good and fair dealing; (3) express indemnity; (4) equitable indemnity; (5) promissory fraud; (6) negligent misrepresentation; and (7) intentional misrepresentation.

On June 4, 2025, Cross-Complainant Birdgroup filed a cross-complaint against Cross-Defendants SDG and Gateway First Bank, alleging six causes of action for (1) breach of contract; (2) foreclosure of mechanics lien; (3) open book account; (4) account stated; (5) unjust enrichment; and (6) breach of implied duty of good faith and fair dealing.

SDG now moves for an order compelling Birdgroup to provide answers to SDG's Requests for Admission, Set One, to provide answers and documents to SDG's Requests for Production of Documents, Set One, and to provide answers to SDG's Special Interrogatories, Set One. SDG also moves for monetary sanctions in connection with each motion. Specifically, SDG seeks sanctions in the amount of \$3,353.00 for the motion to compel special interrogatories, \$2,169.00 for the motion to compel production of documents, and \$2,169.00 for the motion to compel admissions. Birdgroup opposes. SDG replied.

Legal Standard

A. Interrogatories

Code of Civil

Procedure section 2030.260, subdivision (a) requires, “[w]ithin 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party, unless on motion of the propounding party the court has shortened the time for response, or unless on motion of the responding party the court has extended the time for response.” When a party fails to serve a timely response to a request for interrogatories, “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories” and for monetary sanctions. (Code Civ. Proc., § 2030.290, subds. (b)-(c).) The responding party also waives the right to make any objections, including those based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).)

Generally, the prevailing party on a discovery motion is entitled to monetary sanctions. (Code Civ. Proc., §§ 2023.030, subd. (a); 2030.290, subd. (c).) However, the Court retains discretion to deny sanctions where it finds the party “acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).) “Substantial justification” exists when the conduct at issue is “clearly reasonable because it is well grounded in both law and fact” (Doe v. United States Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1434.) The burden of proving substantial justification rests on the party seeking to avoid sanctions. (Id. at p. 1435.) If sanctions are awarded, they must be limited to the reasonable expenses, including attorney fees, incurred due to the discovery misuse. (Code Civ. Proc., § 2023.030, subd. (a).)

B. Request for Admissions

Code of Civil

Procedure section 2033.010 provides, inter alia, that “[a]ny party may obtain discovery ... by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” “Within 30 days after service of requests for admission, the party to whom the

requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared, unless on motion of the requesting party the court has shortened the time for response, or unless on motion of the responding party the court has extended the time for response.” (Code Civ. Proc., § 2033.250, subd. (a).)

“If a party to whom requests for admission are directed fails to serve a timely response, the ... party to whom the requests for admission are directed waives any objection to the requests ... [and] [i]t is mandatory that the court impose a monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subds. (a), (c).)

C. Request for Production of Documents

“Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand, and a copy of the response on all other parties who have appeared in the action.” (Code Civ. Proc., § 2031.260, subd. (a).) “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it ... [t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand.” (Code Civ. Proc., § 2031.300, subd. (a).)

Under Code of Civil Procedure section 2031.300, subdivision (c), “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” “Notwithstanding subdivision (c), absent exceptional circumstances, the court shall not impose sanctions on a party or any attorney of a party for failure to provide electronically stored information that has been lost, damaged, altered, or overwritten as a result of the routine, good faith operation of an electronic information system.” (Code Civ. Proc., § 2031.300, subd. (d)(1).)

Discussion

A. Discovery

Requests

SDG filed three motions to compel discovery responses from Birdgroup. For each motion, SDG's counsel provides a declaration detailing the history of events. SDG's counsel explains that he initially propounded discovery on Birdgroup for Requests for Admission, Set One, Requests for Production of Documents, Set One, and Special Interrogatories, Set One, on December 18, 2025, "with responses due on January 21, 2026." (Cauffman Decl., ¶ 4, Ex. A.) Counsel explains that "[o]n January 21, 2026, the date responses were due, counsel for BIRDGROUP requested an extension of time to respond to SDG's discovery requests ... through February 13, 2026. SDG agreed to this first extension." (Cauffman Decl., ¶ 5, Ex. B.) Then, "[o]n February 13, 2026, BIRDGROUP requested a second extension, seeking additional time through February 25, 2026, to serve its discovery responses. SDG again agreed to the requested extension." (Cauffman Decl., ¶ 6, Ex. C.) "On February 26, 2026, one day after the extended deadline had passed, counsel for BIRDGROUP emailed counsel for SDG, stating that responses would be served as soon as possible" and, "[a]s a professional courtesy, SDG granted BIRDGROUP a third extension through March 3, 2026." (Cauffman Decl., ¶¶ 7-8, Exs. D-E.)

Thereafter, on March 19, 2026, SDG filed a request for an Informal Discovery Conference ("IDC") to obtain the outstanding discovery, but the conference on June 18, 2026 was unsuccessful. (Cauffman Decl., ¶¶ 10-11, Exs. F-G.) SDG's counsel explains that "[a]s a result, the Court affirmed that SDG has fulfilled its requirement to participate in an IDC and that it may proceed with filing a motion to compel regarding the Requests for Admission, Set One, among other outstanding discovery responses." (Cauffman Decl., ¶ 12.) SDG's counsel attests that, as of the filing of the instant motions on July 17, 2026, Birdgroup has not provided responses to any of the outstanding discovery. (Cauffman Decl., ¶ 9.)

SDG's motion asserts that "[n]o case law supports BIRDGROUP's contention that its alleged insolvency excuses it from producing discovery responses. If BIRDGROUP believed SDG's requests for production of documents were unduly burdensome, oppressive, or financially infeasible to comply with, its remedy was to seek a protective order or other

appropriate relief under the discovery statutes.” (Mot., 6:8-11.)

Birdgroup's opposition to the instant motion largely focuses on protesting the requested sanctions. Birdgroup first asserts that “[t]he Court need look no further than the email exchange between counsel to see that the instant motions arise out of the inability to obtain documents and information from Birdgroup to provide meaningful responses to discovery. There is no showing of bad faith and a continued effort to work through the issues.” (Opp., 2:6-10.) Birdgroup contends that “SDG seeks to punish Birdgroup and its counsel with sanctions in the instant matter. Such punishment is not proper. A party is entitled to the ‘reasonable expenses’ for having to bring a motion to compel.” (Opp., 2:11-13.)

Birdgroup further contends that “as counsel has advised both the Court and SDG on multiple occasions, Birdgroup ceased all operations at the beginning of the year and has been in the process of determining how to wind up its operations which has hindered the ability to respond. (Declaration of Steven Napoles ¶2). Here, SDG appears to be seeking to penalize Birdgroup and its counsel. The amount sought is not ‘reasonable’ when a single motion and declarations were prepared and slightly modified in the case of the Requests for Admissions, thereafter, to collectively seek \$7,6691.00 dollars. It is anticipated that by the time of the hearings on this matter, Birdgroup will respond to the Discovery without objections. As a result, there is no basis for sanctions against counsel, and any sanctions awarded, if any, against Birdgroup should be reduced to a more reasonable amount.” (Opp., 2:18-3:2.)

In SDG's reply, SDG first asserts that “monetary sanctions are mandatory on these motions. On a motion to compel initial responses to interrogatories or requests for production, the court shall impose a monetary sanction against the party that unsuccessfully makes or opposes the motion, unless it acted with substantial justification or other circumstances would make the imposition of the sanction unjust. Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c). The governing standard is substantial justification, not subjective bad faith, so Birdgroup's insistence that it acted without bad faith and continued to ‘work through the issues’ misses the mark.” (Reply, 2:15-21.) SDG asserts that “[m]eeting and conferring does not justify serving no responses of any kind by the statutory deadline, and a bare promise to respond at some unspecified point before the hearing is not substantial justification.” (Reply, 2:22-24.)

Birdgroup's opposition contends that it anticipates it will serve discovery responses by the hearing date, so SDG responds to this, asserting that "[t]he question this raises is why Birdgroup is only now able to provide discovery responses. The answer is that there was never any valid excuse or substantial justification for failing to provide them when they were due. Birdgroup does not contend in its opposition that it has resumed operations. If Birdgroup remains wound down yet is now able to respond, the only logical conclusion is that its claimed inability to respond to discovery because it had 'ceased all operations' was never a valid excuse in the first place." (Reply, 3:13-19.) Moreover, SDG contends that "Birdgroups' assertion that the fees sought are 'tantamount to a fine' misapprehends what SDG requests. SDG seeks only the reasonable expenses it actually incurred in bringing three separate motions precisely what the discovery statutes authorize and what authority confirms is recoverable." (Reply, 5:4-6.)

The Court finds that, based on the motions filed by SDG and the opposition filed by Birdgroup, it is necessary to compel Birdgroup's responses to the outstanding discovery. Birdgroup proffers no reason to the Court for why this discovery should not be allowed. Rather, Birdgroup challenges SDG's sanctions request incurred for bringing the instant motions. As noted by SDG, sanctions are required for these discovery motions unless substantial justification is shown. Birdgroup contends that winding down business operations has hindered its ability to respond to discovery. However, Birdgroup does not provide further explanation. The history outlined by SDG demonstrates that SDG propounded discovery on Birdgroup in December 2025. Since then, SDG gave Birdgroup multiple extensions, the parties participated in an IDC, and SDG filed three motions to compel, but still, eight months later, Birdgroup has not provided the requisite discovery. Given the history and Birdgroup's failure to demonstrate substantial justification, the Court finds sanctions warranted.

B. Sanctions Are Warranted

SDG's counsel explains that his hourly billing rate is \$370. (Cauffman Decl., ¶ 13.)

For the motion to compel requests for admission, SDG's counsel explains that he "spent a total of 2.7 hours in

connection with researching applicable law, and drafting the Motion and supporting Declaration. I anticipate that I will spend approximately 2 hours preparing a reply brief in connection with the Motion, and I anticipate spending approximately 1 hour attending the hearing on the Motion. Thus, I estimate that I will have spent a total of 5.7 hours in connection with the above-described tasks.” (Cauffman Decl., ¶ 14.) SDG’s counsel also seeks \$60 for the filing fee. (Cauffman Decl., ¶ 16.) Accordingly, counsel seeks fees in the total amount of \$2,169.00. (Cauffman Decl., ¶ 15.)

For the motion to compel requests for production of documents, SDG’s counsel explains that he “spent a total of 2.7 hours in connection with researching applicable law, and drafting the Motion and supporting Declaration. I anticipate that I will spend approximately 2 hours preparing a reply brief in connection with the Motion, and I anticipate spending approximately 1 hour attending the hearing on the Motion. Thus, I estimate that I will have spent a total of 5.7 hours in connection with the above-described tasks.” (Cauffman Decl., ¶ 14.) SDG’s counsel also seeks \$60 for the filing fee. (Cauffman Decl., ¶ 16.) Accordingly, counsel seeks fees in the total amount of \$2,169.00. (Cauffman Decl., ¶ 15.)

For the motion to compel special interrogatories, SDG’s counsel explains that he “spent a total of 5.9 hours in connection with researching applicable law, and drafting the Motion and supporting Declaration. I anticipate that I will spend approximately 2 hours preparing a reply brief in connection with the Motion, and I anticipate spending approximately 1 hour attending the hearing on the Motion. Thus, I estimate that I will have spent a total of 8.9 hours in connection with the above-described tasks.” (Cauffman Decl., ¶ 14.) SDG’s counsel also seeks \$60 for the filing fee. (Cauffman Decl., ¶ 16.) Accordingly, counsel seeks fees in the total amount of \$3,353.00. (Cauffman Decl., ¶ 15.)

The Court finds the requested hourly fee reasonable. However, given that Birdgroup filed one opposition to the three motions, SDG filed one reply to the opposition, and all three hearings will take place on the same day, the Court finds that the hours requested are too high. Specifically, the Court awards SDG’s counsel two hours in total for reviewing the opposition and preparing the reply. The Court also awards one hour in total for attending the hearing on the instant motions. The Court finds that awarding SDG fees for a total of 14.3 hours of time is reasonable. Accordingly, the Court grants SDG’s fee request in the amount of \$5,471.00,

comprising the 14.3 hours expended on the motions at a rate of \$370 per hour and three \$60 filing fees.

Conclusion

Based on the foregoing, SDG's motion to compel answers to Requests for Admission, Set One, to compel answers and documents to Requests for Production of Documents, Set One, and to compel answers to Special Interrogatories, Set One, is GRANTED. SDG's request for sanctions is GRANTED in the amount of \$5,471.

Birdgroup is ordered to provide code-compliant, verified responses and documents, without objections, to SDG's Requests for Admission, Set One, Requests for Production of Documents, Set One, and Special Interrogatories, Set One, within 30 days of the date of this Order. Birdgroup is ordered to pay Plaintiff sanctions in the amount of \$5,471 within 30 days of the date of this Order.

Plaintiff is ordered to provide notice of this Order.

DATED: August 14, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court